City of Pembroke Pines, FL

City of Pembroke Pines
Charles F. Dodge City Center
601 City Center Way
Pembroke Pines, FL 33025

Meeting Agenda

Wednesday, February 2, 2022

6:30 PM

6:30 PM Public Hearing. 6:30 PM (or at such time as public hearing adjourns) Regular Commission Meeting. Exhibits #4, #5, and #6 were added to Item #12 and republished.

Commission Chambers

City Commission

Mayor Frank C. Ortis
Vice Mayor Thomas Good, Jr.
Commissioner Angelo Castillo
Commissioner Iris A. Siple
Commissioner Jay D. Schwartz

WELCOME TO YOUR CITY COMMISSION.

WE ARE PLEASED THAT YOU HAVE DEMONSTRATED AN INTEREST IN YOUR COMMUNITY BY ATTENDING A CITY COMMISSION MEETING. WE HOPE THAT YOU WILL ATTEND MORE OF THESE MEETINGS IN THE FUTURE.

COVID-19 OBSERVATIONS

THIS MEETING IS CONDUCTED IN PERSON IN THE COMMISSION CHAMBERS AT 601 CITY CENTER WAY, PEMBROKE PINES, FLORIDA 33025, AND DUE TO RECENT CHALLENGES PRESENTED BY THE COVID-19 WORLD-WIDE PANDEMIC, RECOMMENDED ADHERENCE TO THE HEALTH AND SAFETY GUIDELINES OF THE CENTERS FOR DISEASE CONTROL (CDC) WITH REGARD TO SANITIZING, SOCIAL DISTANCING AND FACE COVERINGS TO KEEP THE PUBLIC, COMMISSION, AND STAFF SAFE, IS OBSERVED AS MAY BE AMENDED AND MODIFIED FROM TIME TO TIME.

WHO ARE THE CITY COMMISSIONERS?

THEY ARE ELECTED OFFICIALS WHO ARE THE POLICY FORMULATORS FOR THE CITY. THEY FORMULATE THE LAWS THAT GOVERN OUR COMMUNITY ON A DAILY BASIS.

WHAT IS A CITY COMMISSION MEETING?

IT IS A FORMAL MEETING OF THE MEMBERS OF THE CITY COMMISSION TO TRANSACT CITY BUSINESS. THIS BUSINESS IS CONDUCTED IN A MANNER PRESCRIBED BY LAWS AND REGULATIONS WHICH REQUIRE CERTAIN FORMAL ACTIONS AND THE FOLLOWING OF SPECIFIED PROCEDURES.

WHAT IS THE AGENDA?

THE AGENDA IS A PREPARED SCHEDULE OF THE ITEMS BEING CONSIDERED BY THE CITY COMMISSION FOR ACTION. THE AGENDA AND EXPLANATORY MATERIAL ARE DELIVERED TO EACH CITY COMMISSIONER PRIOR TO EACH MEETING IN ORDER TO GIVE EACH MEMBER TIME TO STUDY.

CAN YOU SPEAK AT THE MEETING?

YES! ALL REGULAR CITY COMMISSION MEETINGS AND PUBLIC HEARINGS PROVIDE TIME FOR THE PUBLIC TO EXPRESS THEIR VIEWS CONCERNING ITEMS ON THE AGENDA.

THE CITY ALSO HAS A PROCEDURAL ORDINANCE FOR CONDUCTING CITY COMMISSION MEETINGS WHICH ALLOWS A TIME AT THE REGULARLY SCHEDULED COMMISSION MEETING FOR ANYONE FROM THE PUBLIC TO EXPRESS THEIR VIEWS ON ANY TOPIC.

TELEVISED

THE PUBLIC CAN LISTEN TO AND VIEW COMMISSION MEETINGS ON TELEVISION AT:
COMCAST CHANNEL 78, AND
AT&T U-VERSE CHANNEL 99.

WEBSITE ACCESS TO LIVESTREAM:

Online at https://www.ppines.com/135/Watch-Meeting---Live-Stream
Live Stream of the Commission Meeting can also be viewed on Youtube at www.youtube.com.

VIEW AGENDAS:

Agendas may be viewed at https://ppines.legistar.com/Calendar.aspx

ACCOMMODATIONS:

IF ANY MEMBER OF THE PUBLIC REQUIRES ADDITIONAL INFORMATION ABOUT THIS CITY COMMISSION MEETING, PLEASE CONTACT:

MARLENE D. GRAHAM, CITY CLERK
CITY OF PEMBROKE PINES
601 CITY CENTER WAY
PEMBROKE PINES, FL 33025
954-450-1060
MGRAHAM@PPINES.COM

ANY PERSON WHO DECIDES TO APPEAL ANY DECISION OF THE COMMISSION WITH RESPECT TO ANY MATTER CONSIDERED AT THIS MEETING WILL NEED A RECORD OF THE PROCEEDINGS AND FOR SUCH PURPOSE, MAY NEED TO ENSURE THAT A VERBATIM RECORD OF THE PROCEEDINGS IS MADE WHICH RECORD INCLUDES TESTIMONY AND EVIDENCE UPON WHICH THE APPEAL IS TO BE BASED.

FURTHER INFORMATION

PERSONS WITH DISABILITIES REQUIRING ACCOMMODATIONS IN ORDER TO PARTICIPATE SHOULD CONTACT THE CITY CLERK, 450-1050 AT LEAST 48 HOURS IN ADVANCE TO REQUEST SUCH ACCOMMODATION. IF ANYONE REQUIRES AUXILIARY AIDS FOR COMMUNICATION PLEASE CALL THE CITY CLERK AT LEAST THREE WORKING DAYS PRIOR TO ANY MEETING AT 954-450-1060.

THANK YOU.

WE THANK YOU FOR YOUR INTEREST IN ATTENDING THE CITY COMMISSION MEETING AND HOPE YOU WILL JOIN US AGAIN. IF YOU HAVE QUESTIONS OR DESIRE FURTHER EXPLANATIONS, PLEASE CONTACT THE CITY MANAGER AT 954-450-1040.

6:30 PM PUBLIC HEARING CALLED TO ORDER

ROLL CALL

OPEN PUBLIC HEARING

PH-1 **22-0039**

THE PURPOSE OF THIS PUBLIC HEARING IS TO ADVISE ALL INTERESTED PARTIES OF THE CITY'S INTENT TO USE THE UNIFORM METHOD FOR THE LEVY, COLLECTION, AND ENFORCEMENT OF A NON-AD VALOREM SPECIAL ASSESSMENT TO RECOVER THE COSTS ASSOCIATED WITH THE CITY'S RESIDENTIAL SOLID WASTE COLLECTION SERVICES.

MOTION TO ADOPT PROPOSED RESOLUTION 2022-R-03. PROPOSED RESOLUTION 2022-R-03 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, SETTING FORTH THE CITY'S INTENT TO USE THE UNIFORM METHOD FOR THE LEVY AND COLLECTION OF A NON-AD VALOREM SPECIAL ASSESSMENT TO BE LEVIED UPON CERTAIN REAL PROPERTIES LYING WITHIN THE MUNICIPAL BOUNDARIES OF THE CITY, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A," ATTACHED HERETO, TO RECOVER THE COSTS ASSOCIATED WITH CITY'S RESIDENTIAL SOLID WASTE COLLECTION SERVICES; STATING A NEED FOR SUCH LEVY; PROVIDING THAT A COPY OF THIS RESOLUTION SHALL BE FORWARDED TO THE PROPERTY APPRAISER, BROWARD COUNTY DIVISION OF FINANCIAL SERVICES (TAX COLLECTOR FOR BROWARD COUNTY) AND THE FLORIDA DEPARTMENT OF REVENUE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

PROPOSED RESOLUTION 2022-R-03 IS ITEM # 18 ON THE AGENDA.

Sponsors: City Commission

Attachments:
1. Proposed Resolution 2022-R-03 Intent Resolution - Residential Solid Waste C
2. Exhibit A to Intent Resolution - City Boundary-City of Pembroke Pines-Legal D
3. Exhibit B-Affidavit-Proof of Publication-Notice Intent Resolution Public hearing
4. Agenda Request Form File 21-1065
5. Proforma Calculation
6. Final 2021 Solid Waste Rates for Broward Cities

CLOSE PUBLIC HEARING

6:40 PM (or at such time at the Public Hearing adjourns) REGULAR MEETING CALLED TO ORDER

ROLL CALL

PLEDGE OF ALLEGIANCE

PRESENTATIONS:

PRE-1 **22-0057** PRESENTATION#1: MAYOR ORTIS WILL ANNOUNCE THE WINNER OF THE 2022 FLORIDA PREPAID SCHOLARSHIP RAFFLE SPONSORED BY THE PEMBROKE PINES CHARTER SCHOOL FOUNDATION, INC.

Sponsors: Charter School Administrative Support Office

PRE-2 **22-0051** PRESENTATION #2: PRESENTATION BY FLORIDA ATLANTIC UNIVERSITY (FAU) REGARDING REDISTRICTING OPTIONS FOR CITY COMMISSION ELECTION DISTRICTS.

Sponsors: Planning and Economic Development Department

ANNOUNCEMENT OF ITEMS TO BE PULLED FROM AGENDA

COMMISSION AUDITOR REPORT:

APPEALS OF BOARD OF ADJUSTMENT DECISIONS:

ITEMS AT THE REQUEST OF THE PUBLIC

ANNOUNCEMENT OF BOARD AND COMMITTEE APPOINTMENTS

CONSENT AGENDA:

1. **21-1096** MOTION TO APPROVE THE PIGGY-BACK SERVICE

AGREEMENT WITH FLOCK GROUP, INC. FOR THE LEASING/USE OF THIRTY SIX (36) INFRASTRUCTURE-FREE (SOLAR POWER + LTE), LICENSE PLATE RECOGNITION READERS WITH VEHICLE FINGERPRINT TECHNOLOGY UTILIZING THE PRICING FROM THE CITY OF GREENVILLE, SOUTH CAROLINA REQUEST FOR PROPOSAL NO. 21-3746 FOR A TOTAL AMOUNT NOT TO EXCEED $99,000 PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

Sponsors: Police

Attachments:
1. Flock Safety Agreement
2. Greenville RFP Contract FINAL GPD - Flock Group Inc. Services Agreement
3. Greenville RFP Final PDF
4. Greenville SC PD Award Letter - Flock Safety
5. Certificate of Liability

2. **22-0001** MOTION TO REJECT ALL BIDS FOR IFB # PSPW-21-06 "REPLACEMENT OF WINDOWS AND DOORS TO IMPACT RATED MATERIAL AT PINES POINT SENIOR RESIDENCE" AND TO AUTHORIZE THE RE-ADVERTISEMENT OF THE SOLICITATION AS IFB # PSPW-22-01 "REPLACEMENT OF WINDOWS AND DOORS TO IMPACT RATED MATERIAL AT PINES POINT SENIOR RESIDENCE".

Sponsors: Public Services

Attachments:
1. PSPW-22-01 Replacement of Windows and Doors to Impact Rated material a
2. PSPW-21-06 Replacement of Windows and Doors to Impact Rated material a
3. Boilerplate

3. **22-0032** MOTION TO APPROVE SHINE PROGRAM MEMORANDUM OF UNDERSTANDING AND ADDENDUM TO MEMORANDUM OF UNDERSTANDING BETWEEN AGING AND DISABILITY RESOURCE CENTER OF BROWARD COUNTY AND THE CITY OF PEMBROKE PINES.

Sponsors: Community Services Department

Attachments:
1. SHINE Addendum to Memorandum of Understanding.pdf
2. SHINE Memorandum of Understanding.pdf

4. **22-0041** MOTION TO APPROVE THE RENEWAL OF CISCO SMARTNET TOTAL CARE FOR THE CITY'S CORE CISCO

INFRASTRUCTURE HARDWARE IN THE AMOUNT NOT TO EXCEED $101,238.06 FROM NETSYNC UTILIZING THE STATE OF FLORIDA ALTERNATE CONTRACT SOURCE #43220000-NASPO-19-ACS (DATA COMMUNICATIONS PRODUCTS AND SERVICES), PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

Sponsors: Technology Services Department

Attachments:
1. NetSync Quote
2. State of Florida Alternate Contract Source (ACS) # 43220000-NASPO-19-ACS
3. Cisco Participating Addendum
4. Cisco Master Agreement AR3227
5. Cisco Amendment 1

5. **22-0042** MOTION TO APPROVE THE FIFTH AMENDMENT TO THE AGREEMENT BETWEEN THE CITY OF PEMBROKE PINES AND THE MCCLATCHY COMPANY, LLC. FOR THE PRINTING OF PEMBROKE PINES CITY CONNECT FOR AN ANNUAL COST NOT TO EXCEED $29,028.

Sponsors: City Manager

Attachments:
1. McClatchy Company - Printing of Newspapers - Fifth Amendment (VE)
2. Exhibit A-5 - Price Grid
3. Miami Herald a division of McClatchy Company - Printing of Newspapers Orig

6. **22-0054** MOTION TO AUTHORIZE THE PURCHASE OF ONE HUNDRED AND SIXTEEN (116) LENOVO LAPTOPS FROM INSIGHT PUBLIC SECTOR, UTILIZING THE STATE OF FLORIDA ALTERNATE SOURCE CONTRACT 43211500-WSCA-15-ACS VIA THE NASPO VALUEPOINT MASTER AGREEMENT # MNWNC-117 IN THE AMOUNT NOT TO EXCEED $162,458, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

Sponsors: Technology Services Department

Attachments:
1. Elementary School Quotation #0224541744 -COPP
2. Middle School Quotation #0224541732 - COPP
3. High School Quotation #0224518686 - COPP
4. Contract # 43211500-WSCA-15-ACS
5. Pricing Sheet Lenovo

7. **22-0003** MOTION TO APPROVE THE FOURTH AMENDMENT TO THE AGREEMENT WITH TOSHIBA BUSINESS SOLUTIONS

FOR THE ONE YEAR RENEWAL TERM COMMENCING ON FEBRUARY 2, 2022, AND EXPIRING ON FEBRUARY 1, 2023 AS ALLOWED BY SECTION 3.2 OF THE ORIGINAL AGREEMENT FOR AN AMOUNT NOT TO EXCEED $216,725.03.

Sponsors: Technology Services Department

Attachments: 1. Toshiba - Contract Performance Report Card (City-wide)

2. Toshiba America Business Solutions - Multi-Function Products - (All Backup)

8. **22-0040** MOTION TO APPROVE THE PURCHASE OF WATER DISTRIBUTION MATERIALS NEEDED FOR CONSTRUCTION OF THE HEALTH PARK WATERMAIN EXTENSION PROJECT FROM FORTILINE, INC., UTILIZING PRICING FROM THE CITY OF BOYNTON BEACH AGREEMENT BID #083-1412-21, FOR AN AMOUNT NOT TO EXCEED $86,843.87, WHICH INCLUDES AN OWNER'S CONTINGENCY IN THE AMOUNT OF $7,894.90, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

Sponsors: Utility Division

Attachments: 1. Fortiline Bid Documents (ALL BACKUP)

2. Fortiline Quote

3. Lease Agreement

9. **22-0055** MOTION TO APPROVE REQUEST TO ADVERTISE SOLICITATION(S):
(A) TS-22-03 "HEWLETT PACKARD ENTERPRISE SERVER WITH QUMULO FILE DATA PLATFORM"
(B) ED-22-01 "AIR PURIFIERS FOR SCHOOL BUS FLEET"
(C) ED-22-02 "SCHOOL BUS FLOORING REPLACEMENT"
(D) AD-22-01 "KITCHEN EQUIPMENT FOR CITY OF PEMBROKE PINES CHARTER SCHOOLS"

Sponsors: Technology Services Department and Purchasing

Attachments: 1. A. TS-22-03 Hewlett Packard Enterprise Server

2. B. ED-22-01 Air Purifiers for School Bus Fleet

3. C. ED-22-02 School Bus Flooring Replacement

4. D. AD-22-01 Kitchen Equipment for City of Pembroke Pines Charter Schools

5. E. Boiler Plate

10. **22-0056** MOTION TO APPROVE THE PUBLIC TRANSPORTATION

GRANT AGREEMENT BETWEEN THE STATE OF FLORIDA DEPARTMENT OF TRANSPORTATION AND THE CITY OF PEMBROKE PINES/SOUTHWEST FOCAL POINT SENIOR CENTER IN THE AMOUNT OF $346,940.00 FOR OPERATING ASSISTANCE.

Sponsors: Community Services Department

Attachments: 1. Public Transportation Grant Agreement (PTGA).pdf

2. E-mail Public Trans. Grant Agreement - PTGA.pdf

11. **22-0065** MOTION TO APPROVE THE MINUTES OF THE WEDNESDAY, JANUARY 12, 2022 COMMISSION MEETING.

Sponsors: City Clerk

Attachments: 1. 01-12-2022 Commission Minutes

12. **22-0043** MOTION TO APPROVE ADMINISTRATION'S RECOMMENDATION TO UTILIZE THE PRICING ESTABLISHED FROM THE SOUTHEAST FLORIDA GOVERNMENTAL COOPERATIVE PURCHASING GROUP (CO-OP) AGREEMENT VIA THE CITY OF COCONUT CREEK, AS LEAD AGENCY, RFP NO. 06-06-18-11 WITH CLEAN HARBORS ENVIRONMENTAL SERVICES, INC. FOR HOUSEHOLD HAZARDOUS WASTE COLLECTION & DISPOSAL SERVICES AT AN ESTIMATED ANNUAL COST OF $140,000, PURSUANT TO SECTION 35.18(C)(6) OF THE CITY'S CODE OF ORDINANCES.

Sponsors: Public Services

Attachments: 1. City of Coconut Creek Co-Op - HHW Agreement

2. City of Coconut Creek - Clean Harbors Environmental Services, Inc. Invoice

3. Broward County Interlocal Agreement for Optional Services

4. Clean Harbors Agreement - (Contractor Signed)

5. Exhibit A - Coconut Creek Agreement and RFP No. 06-06-18-11

6. Exhibit B - Clean Harbors Environmental Services Inc.

QUASI JUDICIAL CONSENT AGENDA:

ORDINANCES AND RESOLUTIONS:

SECOND READING ORDINANCES:

13. **2020-14** MOTION TO ADOPT PROPOSED ORDINANCE NO. 2020-14

ON SECOND AND FINAL READING.

PROPOSED ORDINANCE NO. 2020-14 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA ADOPTING THE PROPOSED SMALL SCALE FUTURE LAND USE PLAN AMENDMENT AMENDING THE CITY'S LAND USE ON AN APPROXIMATE 5 -ACRE PROPERTY GENERALLY LOCATED ON THE SOUTHEAST CORNER OF PINES BOULEVARD AND 72ND AVENUE, KNOWN AS TRINITY LUTHERAN CHURCH, AND AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A;" AMENDING THE CITY'S LOCAL LAND USE PLAN MAP FROM COMMUNITY FACILITIES TO COMMERCIAL FOR THE PURPOSE OF DEVELOPING A GAS STATION AND CONVENIENCE STORE ON THE NORTHERN APPROXIMATE 2.74 GROSS ACRES OF THE OVERALL 5 ACRE PROPERTY; PROVIDING FOR TRANSMITTAL OF CERTIFIED COPIES OF THIS ORDINANCE AND TRANSMISSION OF THE UPDATED FUTURE LAND USE PLAN MAP TO THE BROWARD COUNTY PLANNING COUNCIL AND BROWARD COUNTY COMMISSION; REQUESTING BROWARD COUNTY TO AMEND ITS FUTURE LAND USE MAP AND TO RE-CERTIFY THE CITY'S LAND USE MAP; AUTHORIZING AND DIRECTING THE CITY MANAGER AND ALL APPROPRIATE MEMBERS OF CITY ADMINISTRATION TO TAKE ALL ACTION NECESSARY TO EFFECTUATE THE INTENT OF THIS ORDINANCE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

(PUBLIC HEARING)

Sponsors: Planning and Economic Development Department

Attachments:
1. Proposed Ord 2020-14 Trinity Lutheran Church-Wawa LUPA (1-14-2022)
2. Exhibit A - Wawa Site Sketch - Location Map
3. City LUPA Application - Signed Unified Development Application
4. Updated Comparative Analysis
5. Excerpt of PZB Minutes (10-8-2020)
6. Vicinity Map
7. Aerial Site Map
8. Letter of Objection
9. Public Comments WAWA

14. **2021-30** MOTION TO ADOPT PROPOSED ORDINANCE NO. 2021-30 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE NO. 2021-30 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, AMENDING CHAPTER 155, THE LAND DEVELOPMENT CODE OF THE CITY OF PEMBROKE PINES, BY AMENDING SECTION 155.401, ENTITLED "ZONING MAP," TO AMEND THE CITY'S ZONING DISTRICT MAP TO RE-ZONE AN APPROXIMATE 2-ACRE PARCEL OF LAND GENERALLY LOCATED ON THE SOUTHEAST CORNER OF PINES BOULEVARD AND 72 AVENUE, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A"; RE-ZONING FROM THE CURRENT ZONING OF A (AGRICULTURAL) TO B-3 (GENERAL BUSINESS); PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

Sponsors: Planning and Economic Development Department

Attachments:
1. Proposed Ordinance No. 2021-30 (Trinity Lutheran Church-Wawa Zoning Ch
2. Exhibit A - LEGAL DESCRIPTION
3. SURVEY
4. Aerial Vicinity Map

FIRST READING ORDINANCES:

15. **2021-21** MOTION TO PASS PROPOSED ORDINANCE 2021-21 ON FIRST READING.

PROPOSED ORDINANCE 2021-21 IS AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA PROVIDING FOR THE RE-CREATION AND RE-ESTABLISHMENT OF THE GEOGRAPHIC BOUNDARIES FOR FOUR (4) ELECTION DISTRICTS IN THE CITY OF PEMBROKE PINES IN ACCORDANCE WITH SECTION 3.02 OF THE CITY CHARTER; PROVIDING FOR FINDINGS AND CONCLUSIONS OF THE CITY COMMISSION; PROVIDING FOR THE IMPLEMENTATION OF REVISED ELECTION DISTRICTS TO BE EFFECTIVE FOR THE ELECTIONS HELD IN THE CITY OF PEMBROKE PINES, FLORIDA, FOLLOWING THE EFFECTIVE DATE OF THIS ORDINANCE, AND THEREAFTER; PROVIDING A FORM OF REQUEST TO THE SUPERVISOR OF ELECTIONS OF BROWARD COUNTY, FLORIDA, TO IMPLEMENT THE REVISED PLAN ESTABLISHED PURSUANT TO THIS RE-DISTRICTING ORDINANCE AND TO CREATE FUNCTIONAL DISTRICTS CONSISTENT WITH THE IDENTIFICATION OF GEOGRAPHIC BOUNDARIES FOR ELECTION DISTRICTS; PROVIDING FOR THE ATTACHMENT OF ELECTION DISTRICT MAPS, CHARTS, STREET ADDRESSES, AND GRAPHIC DESCRIPTIONS, WHICH SHALL BE ATTACHED TO AND MADE A PART OF THIS ORDINANCE; PROVIDING FOR AUTHORIZATION AND DIRECTION TO THE CITY ADMINISTRATION TO IMPLEMENT THE TERMS, CONDITIONS, AND PROVISIONS OF THIS ORDINANCE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

SECOND AND FINAL READING IS TENTATIVELY SCHEDULED FOR FEBRUARY 16, 2022.

Sponsors: Planning and Economic Development Department

Attachments:
1. Proposed Ordinance 2021-21 - 2021 Commission District Map Revision
2. Current City of Pembroke Pines City Commission Districts
3. Alternate 1
4. Alternate 2
5. Alternate 3
6. Excerpt of City Charter 3.02

16. **2021-27** MOTION TO PASS PROPOSED ORDINANCE 2021-27 ON FIRST READING.

PROPOSED ORDINANCE 2021-27 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA AMENDING CHAPTER 120, ENTITLED "OTHER BUSINESSES," BY SPECIFICALLY AMENDING SECTION 120.02, ENTITLED "PERSONAL PROFESSION OR OCCUPATION" TO COMPLY WITH THE PROVISIONS OF SECTION 559.955, FLORIDA STATUTES; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

SECOND AND FINAL READING IS TENTATIVELY SCHEDULED FOR WEDNESDAY, MARCH 2, 2022.

Sponsors: City Clerk

Attachments:
1. Ord 2021-27 (Home Based Business)(12-20-21) (00464902-4xC4B6A)
2. 2021-131 Memo - HB 403 - Home-Based Businesses- Local Government Res
3. House Bill 403 (2021) - The Florida Senate-Home-based Businesses
4. House Bill CS-403 Engrossed 1 FL House

RESOLUTIONS:

17. **2022-R-01** PROPOSED RESOLUTION IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, AUTHORIZING AND DIRECTING THE SIGNING OF THE SUBMISSION OF A GRANT APPLICATION AND SUPPORTING DOCUMENTS AND ASSURANCES TO THE FLORIDA DEPARTMENT OF TRANSPORTATION (FDOT), AND THE ACCEPTANCE OF A GRANT AWARD FROM THE FDOT, AND THE PURCHASE OF VEHICLES AND/OR EQUIPMENT, AND/OR EXPENDITURES OF GRANT

FUNDS; DIRECTING THE APPROPRIATE OFFICIALS TO TAKE AND ALL ACTION NECESSARY TO EFFECTUATE THE INTENT OF THIS RESOLUTION FOR CONFLICTS; PROVIDING FOR SEVERABILITY AND PROVIDING FOR AN EFFECTIVE DATE.

Sponsors: Community Services Department

Attachments: 1. 2022-R-01 5310 Bus Grant

18. **2022-R-03** MOTION TO ADOPT PROPOSED RESOLUTION 2022-R-03.

PROPOSED RESOLUTION 2022-R-03 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, SETTING FORTH THE CITY'S INTENT TO USE THE UNIFORM METHOD FOR THE LEVY AND COLLECTION OF A NON-AD VALOREM SPECIAL ASSESSMENT TO BE LEVIED UPON CERTAIN REAL PROPERTIES LYING WITHIN THE MUNICIPAL BOUNDARIES OF THE CITY, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A," ATTACHED HERETO, TO RECOVER THE COSTS ASSOCIATED WITH CITY'S RESIDENTIAL SOLID WASTE COLLECTION SERVICES; STATING A NEED FOR SUCH LEVY; PROVIDING THAT A COPY OF THIS RESOLUTION SHALL BE FORWARDED TO THE PROPERTY APPRAISER, BROWARD COUNTY DIVISION OF FINANCIAL SERVICES (TAX COLLECTOR FOR BROWARD COUNTY) AND THE FLORIDA DEPARTMENT OF REVENUE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

Sponsors: City Commission

Attachments: 1. Proposed Resolution 2022-R-03 Intent Resolution - Residential Solid Waste C

2. Exhibit A to Intent Resolution - City Boundary-City of Pembroke Pines-Legal D

3. Exhibit B-Affidavit-Proof of Publication-Notice Intent Resolution Public hearing

4. Agenda Request Form File 21-1065

5. Proforma Calculation

6. Final 2021 Solid Waste Rates for Broward Cities

19. **2022-R-04** MOTION TO ADOPT PROPOSED RESOLUTION 2022-R-04.

PROPOSED RESOLUTION 2022-R-04 IS A RESOLUTION

OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, APPROVING AND AUTHORIZING THE PROPER CITY OFFICIALS OF THE CITY OF PEMBROKE PINES TO EXECUTE THE FIRST AMENDMENT TO THE MEMORANDUM OF UNDERSTANDING REGARDING COLLABORATIVE STUDY AND SUBSEQUENT DEVELOPMENT OF AN INTEGRATED SOLID WASTE AND RECYCLING SYSTEM WITH BROWARD COUNTY AND OTHER PARTICIPATING MUNICIPALITIES FOR THE PURPOSE OF JOINTLY FUNDING A REGIONAL SOLID WASTE GENERATION STUDY TO INFORM THE CREATION OF A COORDINATED, COST-EFFECTIVE, ENVIRONMENTALLY SUSTAINABLE SYSTEM BY WHICH TO DISPOSE OF SOLID WASTE AND RECYCLABLE MATERIAL ATTACHED HERETO AS EXHIBIT "A" AND INCORPORATED HEREIN; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

Sponsors: Engineering Division

Attachments: 1. 2022-R-04-Reso - Solid Waste MOU First Amendment

2. Solid waste ILA 2019.PDF

3. First Amendment to MOU 1-12-22_v4_UpdatedScope+Population-CLEAN k.p

REGULAR AGENDA:

20. **22-0044** DISCUSSION AND POSSIBLE ACTION REGARDING THE COMMUNITY RATING SYSTEM (CRS) AND THE POTENTIAL FOR THE CITY TO INCREASE ITS RANKING ONE OR MORE LEVELS TO PROVIDE FOR A LARGER FLOOD INSURANCE PREMIUM DISCOUNT FOR RESIDENTS BY HIRING A FIRM TO ASSIST THE CITY IN INCREASING THE CITY'S CRS RATING, PURSUANT TO SECTION 35.18(C)(2) OF THE CITY'S CODE OF ORDINANCES.

Sponsors: City Commission

Attachments: 1 Pembroke Pines120053 FEMA notification of CRS rank 2021.pdf
2 fema_april-2021-eligible-crs-Broward Co FL xls.pdf
3 Comp with Oakland Pk Hollywood Tamarac CC.PDF
4 Memo CRS overview.pdf
5 What if Scenario.pdf
6 fema_april-2021-eligible-crs-FL r.pdf
7 Proposal for CRS Modification Services - City of Pembroke Pines.pdf

21. **22-0052** DISCUSSION AND POSSIBLE ACTION REGARDING COMMISSIONER SIPLE'S JANUARY 12, 2022 ITEM # 22-0029, WHICH COMMISSION APPROVED, FOR ADMINISTRATION TO NEGOTIATE WITH WASTE PRO OF FLORIDA, INC. THE OPTION TO USE THE BLUE CARTS, ONCE PER WEEK, FOR CO-MINGLED SOLID WASTE.

Sponsors: Public Services

Attachments: 1. 2022-01-12 Commission Approval

22. **22-0063** MOTION TO AUTHORIZE ENTERING INTO AN INTERLOCAL AGREEMENT WITH BROWARD COUNTY, FLORIDA TO HAVE BROWARD COUNTY DESIGNATED AS A QUALIFIED COUNTY IN THE OPIOID LITIGATION STATEWIDE SETTLEMENT IN ORDER TO DIRECTLY RECEIVE THE REGIONAL FUNDS PORTION OF THE SETTLEMENT FUNDS FOR OPIOID ABATEMENT IN BROWARD COUNTY.

Sponsors: City Manager

Attachments: 1. Interlocal Agreement Opioid Litigation Statewide Settlement

REPORTS OF LEAGUE REPRESENTATIVES

REPORTS OF THE CITY MANAGER AND CITY ATTORNEY

23. **22-0064** CITY ATTORNEY REPORT: OUTSIDE COUNSEL IN THE PENDING MULTI-DISTRICT OPIOID LITIGATION, IN RE: NATIONAL PRESCRIPTION OPIATE LITIGATION, MDL NO. 2804 (N.D. OHIO), ALSO REPRESENTS THE CITY IN A SEPARATE LITIGATION PEMBROKE PINES V. MCKINSEY & CO., 21-CV-60305 (S.D. FLA.).

Sponsors: City Commission

Attachments: 1.Ltr to Sam Goren summarizing the ZS litigation (01374659xC1DD2)

COMMISSION ITEMS:

24. **22-0067** COMMISSIONER SIPLE - ITEM 1: MOTION TO DIRECT THE CITY MANAGER TO START DISCUSSIONS WITH COUNTY ADMINISTRATION AND OUR CURRENT REPRESENTATIVES ON THE COUNTY COMMISSION TO REVIEW AND AMEND THE TRAFFIC ENGINEERING AGREEMENT BETWEEN BROWARD COUNTY AND THE CITY OF PEMBROKE PINES AS IT PERTAINS TO NEW REQUESTS FOR TRAFFIC SIGNS AND ROAD MARKINGS.

Sponsors: Siple

NEW BUSINESS:

OLD BUSINESS:

ADJOURN - 11:30 P.M.

CITY OF PEMBROKE PINES

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Marlene D. Graham, CMC
City Clerk